



THE ROLE OF A LIBRARY TRUSTEE

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About This Handout

This reference guide covers three topics:

1. What it means to be a trustee,
2. How the board and director work best together, and
3. How the library manages partnerships, contracts, and outside relationships responsibly.

There is also a Governance FAQ section that draws from questions asked by boards across the system in 2026 at the end. Citations are included so you can go directly to the source.

Part I: The Role of a Library Trustee

What a Trustee Is

A trustee is a person to whom property is legally committed in trust. As the *Handbook for Library Trustees of New York State* (2023 ed.) explains:

"A library trustee's commitment is to both the physical property and resources of the library and the services it provides. The Library Board has the authority and final responsibility to see that its library provides the best possible service to its community."

(*Handbook for Library Trustees of New York State*, 2023 ed., p. 20)

Three Core Duties

The Board of Regents, which charters and oversees education corporations in New York, frames every trustee's duties as **Care, Loyalty, and Obedience**.

Duty of Care

"A trustee or board member must act in good faith and exercise the degree of diligence, care and skill that an ordinary prudent individual would use under similar circumstances in a like position."

(Handbook for Library Trustees of New York State, 2023 ed., p. 20)

Duty of Loyalty

"Trustees/board members owe allegiance to the institution and must act in good faith with the best interest of the organization in mind. The conduct of a trustee/board member must, at all times, further the institution's goals and not the member's personal or business interests...A trustee/board member should avoid even the appearance of impropriety.... Acts of self-dealing constitute a breach of fiduciary responsibility that could result in personal liability and removal from the board."

(Handbook for Library Trustees of New York State, 2023 ed., pp. 20–21)

Duty of Obedience

"A trustee/board member has a responsibility to insure that the institution's resources are dedicated to the fulfillment of its mission. The member also has a duty to ensure that the institution complies with all applicable laws and does not engage in any unauthorized activities."

(Handbook for Library Trustees of New York State, 2023 ed., p. 21)

The Board of Regents also charges trustees to "ensure that financial resources are being used efficiently and effectively toward meeting the institution's goals" and to "hire a CEO to manage the operation of the institution and evaluate his/her overall performance."
(Ibid.)

What Trustees Are Responsible For

The core responsibilities of a trustee are to:

1. Create and develop the mission of the library and be prepared to articulate it clearly and concisely;
2. Regularly plan and evaluate the library's service program based on community needs;
3. Select, hire and regularly evaluate a qualified library director;
4. Secure adequate, sustainable funding for the library's service program;

5. Exercise fiduciary responsibility for the use of public and private funds;
6. Adopt and regularly review policies and rules regarding library governance and use and defend them when challenged;
7. Maintain a facility that meets the library's and community's needs;
8. Promote the library in the local community and in society in general; and
9. Conduct the business of the library in an open and ethical manner in compliance with all applicable laws and regulations, the ALA Core Values, and with respect for the institution, staff and public.

(Handbook for Library Trustees of New York State, 2023 ed., pp. 21–22)

A Checklist for Effective Trustees

- ☐ Ensure they are familiar with current library services and programs, including online resources.
- ☐ Review critical documents such as the library's bylaws, budget, long-range and strategic plans, and policies.
- ☐ Understand the roles of all involved — the Board, director, staff, Friends of the Library, and patrons. In particular, understand and respect the role of the director as Chief Executive Officer (CEO) of the library and support the director's administrative decisions.
- ☐ Be a team player and treat fellow board members, the library director, and staff with dignity. Contribute to a board and organizational culture that prioritizes inclusivity.
- ☐ Be active and informed about library matters in general and of those affecting the library. Ask questions of the director and study the issues.
- ☐ Attend all board meetings and be prepared to participate knowledgeably by reading board meeting materials in advance.
- ☐ Question issues until you understand. Don't be reluctant to vote "No" on a proposal you don't understand or are uncomfortable about.
- ☐ Support board decisions even if you disagree. Democracy works by the rule of the majority. Seek reconsideration in the future if circumstances change.
- ☐ Advocate for the library in every manner possible.
- ☐ Support competitive salaries and benefits, including an investment in continuing education, to attract and retain qualified staff.
- ☐ Ensure both the Library Director and Board are evaluated annually.

"it's about the library, not about you. Always remember that your primary job is to provide the highest quality library service possible for your community, not the cheapest."

(Handbook for Library Trustees of New York State, 2023 ed., pp. 23–24)

The Board Acts Collectively

Under New York State law, a library board has broad authority to manage the affairs of the library, but it is a collective authority. Individual trustees, regardless of their position on the board, may not speak or act on behalf of the library unless a vote of the board has specifically granted that authority.

The *Handbook for Library Trustees of New York State* (2023 ed.) states:

"In general, the Board's directions and intentions are communicated to the Library Director through the President or through official actions at a Board meeting. Individual trustees should refrain from issuing specific instructions to the Library Director at board meetings and especially between meetings. Such individual directions are inconsistent with the concept of collective board authority, and a Library Director risks being caught between conflicting intentions, even among well-meaning trustees."

(Handbook for Library Trustees of New York State, 2023 ed., p. 66)

Motions are how the board acts: A board motion is the formal mechanism by which the board exercises its collective authority. Without a motion (properly made, seconded, and voted upon) the board has taken no official action. Conversations at a board meeting, however substantive, do not constitute direction to the director or authorization to spend funds, adopt a policy, or take any other official step. If it was not captured in a specific, correctly-worded motion, it did not happen as a matter of governance.

Every trustee is expected to vote: Under New York General Construction Law §41, a motion passes only with an affirmative vote of a majority of the whole board (including vacancies), not a majority of those present. This means every trustee's vote carries weight, and every trustee has an obligation to cast one. Voting yes or no is not optional. Abstentions are appropriate in when a genuine, documented conflict of interest that requires the trustee to leave the room entirely during discussion and the vote. Abstaining because a matter is uncomfortable, because a trustee did not follow the discussion closely, or because a trustee does not want to appear to take a side is not a legitimate use of abstention. It is a failure to govern.

Part II: Governing Strategically: The Board's Work

Governance vs. Management

The distinction between governance and management is the most important boundary a board must maintain. It shapes nearly every other decision the board makes.

The Trustee Handbook states:

"The board's role is to govern the library — to approve policy, secure adequate funding, assist with planning for the future, ensuring the library facility meets the needs of the community, and hire a competent, qualified library director."

"The director's role is to manage the library — to advise the board and implement the board's plan, budget, and policies on a day-to-day basis while managing the staff and overseeing general operations."

(Handbook for New Public Library Directors in New York State, 2025 ed., p. 26)

The board governs. The director manages. These roles overlap in planning and policy development, which is a strength when the partnership is working well and a source of friction when it is not.

Strategic Work the Board Owns

The division of responsibilities described below reflects the governance framework established by New York State law and best practice guidance. In practice, healthy board-director relationships sometimes look a little different from library to library and that is fine, provided the core legal responsibilities remain clearly owned by the board.

Policy adoption: The board adopts policies that govern how the library operates. The director drafts, recommends, and implements them. Policies must be reviewed periodically. Under the updated NYS Minimum Standards, specific written policies are now required and almost all policies must be reviewed at least once every five years.

Budget approval: The board approves the annual operating budget and any reserve fund transactions. The director prepares the budget and manages expenditures within board-approved parameters.

Long-range and strategic planning: Every public library in New York is required to maintain a written long-range plan of service, based on community needs, accessible on the library's website (8 NYCRR §90.2). The plan drives annual budget and evaluation decisions. The board owns the plan; the director leads the implementation.

Director evaluation: The board evaluates the director's performance annually. This is one of the board's most important governance functions:

"In order to maintain clear communication and effective management, it is critical for the trustees to regularly evaluate the performance of the Library Director as well as the Board itself."

(Handbook for Library Trustees of New York State, 2023 ed., p. 70)

The annual evaluation should also include a **board self-evaluation** which is an honest review of how effectively the board is governing.

Trustee education: New York Education Law §260-d requires a minimum of two hours of trustee education annually. That requirement runs from each trustee's start-of-service date. OWWL Library System offers training through Niche Academy and in-person sessions.

What Is NOT the Board's Work

The day-to-day management of the library, including the management of staff, is the Library Director's responsibility. The *Handbook* is explicit:

"The Library Director is the only employee directly overseen by the Board. The Library Director is responsible for the management and supervision of all other library employees. Trustees have a responsibility to know the staff at a friendly but professional distance, to be cordial and supportive, and to promote goodwill. But they must approach staff relationships with a degree of caution."

"Soliciting input from staff regarding library operations as an individual trustee is inappropriate, as is suggesting training to a staff member, or asking them to do something for you, even if it is related to your board service. Astute awareness of the power dynamic between board members and staff is essential. You are not the average community member; you hold a position of authority in the institution. Misuse of that authority, even if you did not mean for your comment, request, or suggestion to be perceived as an abuse of power, can be detrimental to the chain of command and workplace culture of your library. Usurping the administrative prerogatives of the Library Director can only undermine that person's position and authority and ultimately lead to misunderstanding and conflict."

(Handbook for Library Trustees of New York State, 2023 ed., p. 66)

A practical test: If an individual trustee is directing a staff member, responding to a patron complaint, or making an operational decision outside a formal board meeting, they have moved out of governance and into management. That creates confusion, erodes the director's authority, and puts the library at legal and operational risk.

Part III: The Trustee-Director Partnership

The Critical Partnership

The *Handbook* frames the board-director relationship as a foundational partnership:

"As the library's governing body (and the entity with ultimate accountability for the institution), the Board has the responsibility to hire a competent, professional, and qualified Library Director as the 'CEO' (Chief Executive Officer) and then to regularly review and evaluate that person's performance in moving the library forward. Having hired a Library Director, the Board has an obligation to support the Library Director wholeheartedly within the context of the employment relationship. Good communication and cooperation between the Board and Library Director and an appreciation of the interdependency of each other's roles are prerequisites to a well-managed library."

(Handbook for Library Trustees of New York State, 2023 ed., p. 65)

Communication Structure

The board president holds the most direct communication line with the director. Between monthly board meetings, the director and board president may meet or communicate to prepare for upcoming meetings and address matters that require timely attention. Individual trustees should channel communication to the director through the board president between meetings.

A common side note that comes up is that the board president does not hold additional authority over the director or board. The president holds additional responsibility. They facilitate meetings, serve as the primary communication channel with the director, and help the board function effectively, but they are not authorized to act unilaterally on behalf of the board, override a board vote, or direct the director without board authorization. Every trustee's vote carries equal weight.

The *Handbook* notes:

"The board is a collective authority. Under New York State law, a library board has broad authority to manage the affairs of the library, but it is a collective authority. This means that individual trustees, regardless of their position on the board, may not speak or act on behalf of the library unless a vote of the board has specifically granted that authority."

(Handbook for New Public Library Directors in New York State, 2025 ed., p. 27)

Supporting the Director's Administrative Authority

Once the board has hired and evaluated a director, it must support that director's administrative decisions. Trustees who second-guess staff hiring decisions, question

program choices with library employees, or suggest operational changes to staff are not governing, they are managing. That distinction matters as it exposes the library to personnel liability and undermines the director's ability to lead.

When a board member believes the director has made a poor operational decision, the appropriate channel is a conversation with the board president, who can raise the concern through official channels if warranted.

Part IV: Contracts, MOUs, and Partnership Documentation

The Library Enters into Relationships — But Not Informally

Libraries regularly work with outside groups and organizations. Friends groups, community organizations, local businesses, vendors, volunteers, and municipal partners all play roles in supporting or collaborating with the library. Those relationships are valuable. They are also governed by law, and they must be formalized.

An informal arrangement, whether a handshake agreement, a long-standing practice nobody wrote down, or an understanding the previous director had with a local group, is not a substitute for proper documentation. When something goes wrong in an informal arrangement, the library bears the exposure with nothing in writing to define the terms, protect the institution, or establish what was agreed. That is an inappropriate position for a public institution to be in, and it is one the board cannot allow. The board's fiduciary duty requires it to protect the library's resources and ensure the institution can account for its decisions. A relationship the library cannot document is a relationship the library cannot defend.

The board's role is to ensure that every significant partnership or ongoing relationship is documented, board-authorized, and consistent with library policy.

What Formalization Looks Like

Depending on the nature of the relationship, formalization may take the form of:

- A **contract**, for any arrangement involving the exchange of money, services, or property;
- A **Memorandum of Understanding (MOU)**, for cooperative relationships where both parties have defined roles and responsibilities but no direct financial exchange is involved. MOUs are common with Friends groups, municipal partners, and community organizations;
- A **use agreement**, for organizations or individuals who use library space on a recurring basis; or

- A **board resolution**, when the board is granting authority, accepting a donation with conditions, or authorizing the director to enter into a specific agreement on the library's behalf.

None of these documents requires a lawyer to initiate, but all of them should be reviewed before signing. Any arrangement involving significant funds, real property, or legal obligations should go to legal counsel before execution.

The Library Cannot Be a Vehicle for Private Benefit

One principle that governs all of these relationships is the library's resources, including its funds, its space, its name, and its staff time, exist to serve the public. They cannot be directed to benefit a private individual or organization in a way that is disproportionate to what the library receives in return, or that provides a benefit to one group over another. This standard applies regardless of the size, popularity, or community support behind any particular organization or cause.

This is the concept of **inurement**. Inurement occurs when the assets or income of a public or nonprofit institution flow to the private benefit of an individual or related party, rather than to the institution's public mission. A library that allows a community group to use its space free of charge while charging others, directs funds to an organization with personal ties to a board member without competitive process, or accepts a donation with conditions that primarily benefit the donor rather than the library, risks inurement.

For public libraries in New York, inurement concerns arise under both the Not-for-Profit Corporation Law and the New York State Constitution's prohibition on gifts of public funds. The Office of the State Comptroller has held consistently that public funds may only be expended for a public purpose. A library that channels resources to a private group without a documented public benefit and proper board authorization is not protected, even if the intent was good.

A related and equally important point concerns third-party solicitations and displays. When outside groups ask the library to host fundraising solicitations, donation boxes, or promotional displays on their behalf, the same principles apply. The library's decision to accommodate or decline any such request must be grounded in a written policy applied consistently to all parties. A board vote on a specific request, in the absence of a written policy, produces a decision based on board sentiment about a particular cause rather than on a documentable, neutral standard. That approach cannot be defended when the next request arrives, regardless of how the vote went on the previous one.

Past legal guidance identifies three policy options for libraries facing third-party solicitation requests. All three require a written policy.

- **Option 1:** As a matter of policy, the library does not host donation solicitations for third parties. No application process, no case-by-case review, no exceptions.
- **Option 2:** As a matter of policy, the library uses an application process and defined criteria to host a limited number of solicitations at any given time.
- **Option 3:** As a matter of policy, the library uses an application process and defined criteria for an unlimited number of solicitations.

Under Options 2 and 3, the recommended threshold criterion is registration with the New York Attorney General's Charities Bureau, a standard that is objective, publicly verifiable, and applies equally to every organization that asks. That requirement exists specifically to give the library a neutral, documentable standard it can apply consistently, rather than evaluating the merits of individual causes.

The board's role here is to direct the development of a written policy before a request arrives.

Authority: NY State Constitution, Article VIII, §1; Not-for-Profit Corporation Law §715-a; OSC guidance on gifts of public funds; WNYLRC Ask the Lawyer RAQ archive

Consistency and the Prohibition on Arbitrary Decisions

Formalization protects the library from another risk, the appearance, or reality, of arbitrary and inconsistent treatment of outside parties. If the library allows one organization to use its meeting room at no charge but charges another, that inconsistency creates legal exposure under First Amendment and equal protection principles. If the library accepts a donation with conditions from one donor but not another, it establishes a precedent it may not be able to defend.

The board addresses this by adopting policies that govern these arrangements before specific requests arise, not in response to them. A space use policy, a gifts and donations policy, a Friends group MOU, and a procurement policy are not paperwork for its own sake. They are the framework that allows the library to say yes or no to any request based on consistent, documented standards rather than on who is asking.

When a request falls outside established policy, the answer is not to make an exception. The answer is to bring the matter to the board, determine whether the policy should be revised, and act from that revised policy going forward. Arbitrary decisions, even well-intentioned ones, cannot be defended when challenged.

What the Board Should Ensure Is in Place

At minimum, the board should confirm that the library has documented, board-approved policies and agreements covering:

- Use of library space by outside groups, including any fee structure and the basis for waivers;
- Acceptance of gifts and donations, including conditions under which the library will accept or decline restricted gifts;
- Any ongoing relationship with a Friends group, including an MOU that defines roles, fiscal responsibilities, use of the library's name, and how funds raised are directed;
- Vendor and service contracts, including confirmation that procurement requirements are followed for contracts above applicable thresholds; and
- Any arrangement in which the library is sharing staff time, facilities, or funds with another entity.

If any of these arrangements currently exist without documentation, the board should direct the director to bring proposed agreements forward for review and adoption. Operating on an informal basis is not a neutral position. It is a risk position.

Governance FAQ in 2026

These questions were drawn from governance questions asked by library directors and boards across the OWWL Library System during 2026. Identifying information has been removed. Answers reflect New York State law and established guidance as of June 2026.

1. What is the proper role of abstentions in board voting?

Abstentions should be rare. The only recognized basis for abstaining is a documented conflict of interest (financial or otherwise). In that case, the board must follow their own adopted policy and the conflicted trustee must leave the room entirely during discussion and the vote, and the conflict must be documented in the minutes.

Abstaining because a trustee is uncertain, uncomfortable, or was absent from prior discussion is not appropriate. Trustees are expected to vote yes or no. Abstaining without cause is a failure to govern. Under New York General Construction Law §41, a motion passes only with an affirmative vote of a majority of the whole board — not a majority of those present. Abstentions do not count as affirmative votes.

2. When does a gathering of trustees constitute a public meeting under Open Meetings Law?

Two or more trustees discussing library business constitutes a public meeting under New York Public Officers Law, Article 7. This applies regardless of location (a coffee shop, a parking lot, a private email thread). It applies to committees and subcommittees as well as the full board. Notice must be provided as required by Education Law §260-A: at least one week before a meeting scheduled at least two weeks in advance, sent to the news media, posted at the library, and posted on the library's website. The practical rule: when in doubt, notice it and open it.

Authority: NY Public Officers Law, Article 7; Education Law §260-A

3. What is the process for filling a board vacancy, and is a letter of intent appropriate?

Yes. Requesting a letter of intent before appointing a candidate to a board vacancy is entirely appropriate and protects the board's records. The typical process is:

1. Expression of interest from the prospective trustee;
2. Letter of intent or application confirming willingness to serve;
3. Board vote to formally appoint the individual at a public meeting (requires an affirmative vote of a majority of the whole board under General Construction Law §41); and
4. Oath of office, which is required for public library trustees and must be taken within 30 days of appointment.

Note: Appointment procedures vary by library type. Association library boards appoint according to their bylaws. Municipal public library boards recommend candidates to the appointing municipality. School district public library trustee seats are filled by election. Confirm the process that applies to your library type before acting.

4. Does a library reserve fund require a public hearing to access?

No. A board resolution is sufficient to authorize a transfer from library reserves. Public hearings are required for certain municipal budget changes, not for library reserve draws. Common confusion arises when some libraries hold reserve funds with the municipality rather than in a library-controlled account. In that situation, additional steps may be required. Libraries should confirm in writing which funds are library-controlled versus municipally held. A board motion authorizes the transfer; the treasurer or principal account clerk executes it.

Authority: OSC Local Government Management Guide; OSC Reserve Fund guidance

5. Can a library board conduct anonymous votes or anonymous director evaluations?

No. Library boards are public bodies subject to New York Open Meetings Law. Under Public Officers Law §106, minutes must include a record of all motions formally voted upon and the vote thereon. Court decisions have held that open voting and a record of the manner in which each member voted is required (*Smithson v. Ilion Housing Authority*, 130 AD 2d 965 (1987)).

Similarly, individual trustee feedback gathered in an anonymous evaluation process should not be attributed to the full board or relayed to the director as a board concern unless the full board, acting as a body in a properly noticed meeting, endorses it as such.

Authority: NY Public Officers Law §106; Smithson v. Ilion Housing Authority

6. What are the consequences of inurement for a library and its trustees?

Inurement is among the most serious governance violations a public or nonprofit institution can face, and the consequences apply at both the federal and state level.

At the federal level, the IRS can revoke a library's tax-exempt status entirely if inurement is found. That is not a fine or a warning. It is the loss of 501(c)(3) status, which affects the library's ability to receive tax-deductible donations and apply for most grants. Under the IRS's intermediate sanctions rules, trustees who approved a transaction resulting in inurement can also be held personally liable for excise taxes on the excess benefit. That liability attaches to the individual trustees who voted to approve the transaction, not just to the institution.

At the state level, the New York Attorney General oversees nonprofit corporations and has authority to investigate, seek restitution, and pursue removal of trustees who breach their fiduciary duties. For public libraries specifically, the Office of the State Comptroller has authority to audit the use of public funds. An OSC finding that public funds were expended for a private rather than public purpose can trigger a formal audit finding, a requirement to repay funds, and referral for further investigation. Those findings are public records.

Most inurement situations in small public libraries are not the result of bad intent. They result from informal practices that went unquestioned, relationships that developed gradually, and decisions made without a written policy to guide them. The consequences, however, do not turn on intent. A library that cannot document the public purpose behind an expenditure or arrangement is exposed regardless of what the board meant to do.

The board's most effective protection is a written policy adopted before a request arrives, applied consistently to everyone who asks, and documented in the minutes when decisions are made under it.

Authority: Internal Revenue Code §501(c)(3); IRS Intermediate Sanctions rules (IRC §4958); NY Not-for-Profit Corporation Law §715-a; NY State Constitution, Article VIII, §1; OSC guidance on gifts of public funds

7. What conflict of interest law applies to library board trustees?

The applicable law depends on library type.

For **school district public libraries, municipal public libraries, and special legislative district libraries**, trustees are public officers subject to **General Municipal Law Article 18 (§§800–809)**. GML Article 18 requires: disclosure of financial interests before action is taken, abstention from votes on matters in which a trustee has a financial interest, documentation in the minutes, and annual disclosure statements. The board must also adopt a Code of Ethics under GML §806.

For **association libraries**, the **Nonprofit Revitalization Act of 2013** governs. The conflict of interest policy must be adopted annually, and each trustee must complete and sign a written disclosure statement prior to election or appointment and annually thereafter.

Confirm which framework applies to your library before updating your Conflict of Interest policy. A trustee who refuses to sign the Conflict of Interest policy may be subject to removal per the library's bylaws.

Authority: General Municipal Law §§800–809; Not-for-Profit Corporation Law §715-a

8. What policies must libraries have in place by January 1, 2027?

The Board of Regents approved amendments to the Regulations of the Commissioner of Education updating Minimum Standard #4. Libraries must maintain the following written policies, each reviewed by the board at least once every five years:

- Selection and reconsideration of library materials
- Public use of space and meeting rooms
- Code of conduct
- Confidentiality of library records
- Personnel policies or employee handbook
- Disaster preparedness

- Financial control policies, covering: audit schedule, credit card policy, data security, reserve funds, procurement, petty cash, online banking, investments, and Friends group MOU

All policies must be board-approved no later than **January 1, 2027**. Sample policies are available at <https://docs.owwl.org/Community/PolicyLibrary>.

Authority: 8 NYCRR §90.2; NYS Minimum Standards for Public Libraries

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